

Instructor: Date:

Learner: Regional Branch:

Program: Center:

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Let's Start!

Software Quality Promises?



Learning Outcome:

Understand information about people's backgrounds in spoken or written documents.

Participate in the improvement of IT contracts, establishing technical clauses that respond to the needs of the negotiating agents, based on current laws on contracting.

Ask your partner:

- When you get a software, do you read everything before accepting the terms in a software license agreement? Why?
- Do you know the kind of guarantees you get when signing a software license agreement?

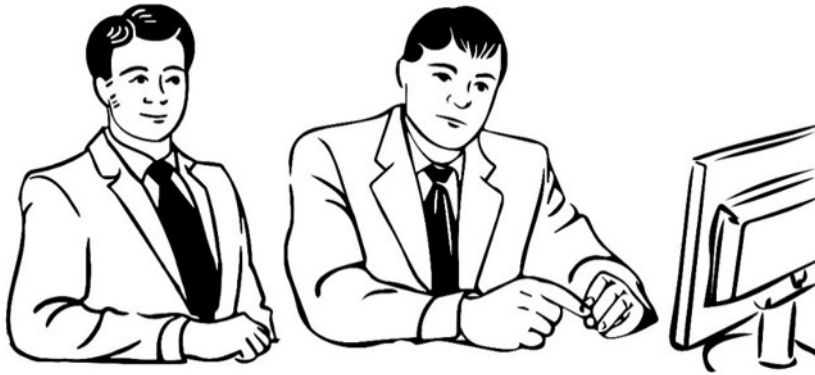
Can Do Statements:

- I can talk about different quality promises in a software license agreement.
- I can talk about exceptions to warranty in a software license agreement.
- I can discuss some recommendations when negotiating software license agreements.



Let's Explore!

Two business partners are discussing the importance of understanding the promises, warranties and the disclaimers in a contract



Instructions: Read the text below.

Phil: Well, this Software License Agreement looks like a book.

Will: It sure does, but we need to read it carefully, whether we like it or not.

Phil: Ok. But there are a few things I still don't understand. For example, what's a warranty? And a warranty period?

Will: Well, it is a sort of promise present in a software license agreement that has to do with the quality of the software. It provides remedies to the customer if the software turns out to be defective. However, warranties are subject to various exceptions for problems that are not caused by software defects. The warranty period is the time software is expected to work in compliance with the description in the applicable software documentation.

Phil: What about a breach of warranty? Is that when there is a violation of the agreement regarding the quality of the software?

Will: You're right. But, also remember that we, as customers, need to manage and mitigate risk through prudent business practices and contractual rights. That's why it is so necessary for us to read this agreement. If anything goes wrong with the software, we have the warranties.

Phil: But what do we do if the software doesn't suit our needs?

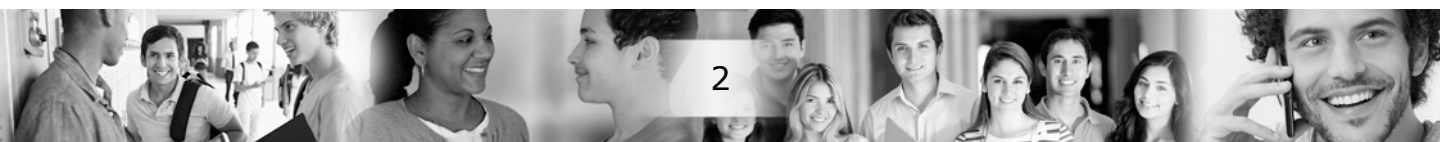
Will: In that case, we need to be careful with the disclaimers.

Phil: Disclaimers?

Will: Yes. Those are detailed provisions that exclude other promises regarding, for example, the quality of the software. Disclaimers often specify that the customer is responsible for selecting the software. In other words, if the customer decides to acquire that program, they do it at their own risk.

Phil: So, if we're not happy with the product we acquire, we have to check the disclaimers to see what we can do.

Will: Correct!



**Let's Practice!**

Exceptions to Warranty in the Software License Agreement

Instructions: Circle all verbs in the simple present form.

A Software License Agreement is a sort of promise present in a software license agreement that has to do with the quality of the software. It provides remedies to the customer if the software turns out to be defective. However, warranties are subject to various exceptions for problems that are not caused by software defects. The warranty period is the time software is expected to work in compliance with the description in the applicable software documentation.

**Let's Practice!**

Quality Promises in the Software License Agreement

Instructions: Proofread the dialogue. Correct the mistakes.

Brenda: What are a breach of warranty? Are that when there is a violation of the agreement regarding the quality of the software?

John: You're right. But, also remember that we, as customers, needs to manage and mitigate risk through prudent business practices and contractual rights. That's why it are so necessary for us to read this agreement.



Extension Activity

Software Promises and Exceptions Models

Instructions: Complete the following steps. Fill in the Self-Assessment.

- Look for two software license agreements.
- Write a comparative chart about their quality promises and exceptions to warranty.
- Use the grammar and vocabulary you studied in this lesson.
- Share the comparative chart with your classmates.

Self-Assessment

Yes No

- I look for software license agreements models. ☐ ☐
- I describe them in a comparative chart. ☐ ☐
- I use the grammar and vocabulary I learned. ☐ ☐
- I share the information with my classmates. ☐ ☐



Target Words

- **disclaimer** (noun): a statement that delimits the scope of rights or obligations from the parties in a contract.
e.g. Disclaimers often specify that the customer is responsible for selecting the software.
- **promise** (noun): in a contract, commitment from one party given to another one to do or keep from doing specific acts.
e.g. Well, it is a sort of promise present in a software license agreement that has to do with the quality of the software. It provides remedies to the customer if the software turns out to be defective.
- **provision** (noun): a stipulation in a contract that explains a particular condition or implication.
e.g. Those are detailed provisions that exclude other promises regarding, for example, the quality of the software.
- **remedy** (noun): legal means of cessation of a wrong.
e.g. Well, it is a sort of promise present in a software license agreement that has to do with the quality of the software. It provides remedies to the customer if the software turns out to be defective.
- **suit someone's needs** (expression): to be appropriate for the necessities of an individual.
e.g. But what do we do if the software doesn't suit our needs?
- **warranty** (noun): a term in a contract that ensures that an acquired service shall meet the specified requirements.
e.g. A warranty is a sort of promise present in a software license agreement that has to do with the quality of the software. It provides remedies to the customer if the software turns out to be defective.



Learning Points

Conditional Sentences with If Clauses - Zero Conditional

The **zero conditional** is used to talk about facts and conditions that will always have the same result.

Conditionals are usually divided into two clauses, an “*If clause*” and a “*main clause*”. In the case of the **Zero Conditional** these two clauses go in the present simple tense:

If + Present simple (condition)	Present simple (result)
<i>If the software fails to comply with the warranty during the warranty period</i>	<i>Software license agreements usually provide the customer with limited, exclusive remedies.</i>

Examples

- *Well, it is a sort of promise present in a software license agreement that has to do with the quality of the software. It provides remedies to the customer if the software turns out to be defective.*
- *If anything goes wrong with the software, we have the warranties.*
- *In other words, if the customer decides to acquire that program, they do it at their own risk.*
- *So, if we're not happy with the product we acquire, we have to check the disclaimers to see what we can do.*





Learning Points

Disclaimer of Warranties

A warranty is a promise from the provider that the product or service is going to work as expected. A disclaimer of warranties disclaims or denies warranties which otherwise apply to the product or service.

Typical disclaimers of warranties include:

1. **The implied warranty of suitability for the ordinary purposes the product is going to be used for:** A guarantee that the product or service complies with regular standards of care and possesses similar qualities to that of similar good sold under similar circumstances.
2. **The implied warranty of suitability for a particular purpose:** A guarantee that the product is suitable for the specific purpose.
3. **The warranty of non-infraction:** A guarantee provided by a vendor who is accustomed to dealing in a particular type of product that the product does not infract the intellectual property rights of any other person.

Examples

- *Disclaimers?*
Yes. Those are detailed provisions that exclude other promises regarding, for example, the quality of the software. Disclaimers specify that the customer is responsible for selecting the software. In other words, if the customer decides to acquire that program, they do it at their own risk.
- *So, if we're not happy with the product we acquire, we have to check the disclaimers to see what we can do.*